

therein, not less than four weeks after the first insertion of such notice in the *Gazette*, the Court will be moved that the bill may be taken *pro confesso* against such defendant, which notice must be inserted at least once in every week from the time of the first insertion thereof up to the time for which the same shall have been given; and the plaintiff must, upon the hearing of such motion, satisfy the Court, either that such defendant has been served with subpoena out of the jurisdiction, or that the plaintiff has been unable with due diligence to serve such defendant personally with such notice of motion as aforesaid, by reason of his being concealed, or for some other cause, and in either case that he has no solicitor, and that such notice of motion as aforesaid has been inserted in the *Gazette* as herein provided. And the Court, being satisfied thereof, and no answer having been filed, may order the bill to be taken *pro confesso* against such defendant, either immediately or at such time and upon such further notice as under the circumstances of the case may be deemed proper.

No cause in which an order is made, that a bill be taken *pro confesso* against a defendant, is to be heard on the same day on which the order is made; but the cause is to be set down to be heard; and the Court, if it so think fit, may appoint a special day for the hearing thereof.

A defendant, against whom an order to take a bill *pro confesso* is made, is at liberty to appear at the hearing of the cause, and, if he waives all objection to the order, but not otherwise, he may be heard to argue the case upon the merits as stated in the bill.

Upon the hearing of a case, in which a bill has been ordered to be taken *pro confesso*, such decree is to be made as to the Court seems just; and in the case of any defendant, who has appeared at the hearing and waived all objection to such order to take the bill *pro confesso*, or against whom the order has been made after appearance, by himself or his own solicitor, or upon notice served upon him or his solicitor, the decree is to be absolute.

In pronouncing the decree the Court may, either upon the case stated in the bill, or upon that case and a petition presented by the plaintiff for the purpose, as the case may require, order a receiver of the real and personal estate of the defendant, against whom the bill has been ordered to be taken *pro confesso*, to be appointed with the usual directions, or direct a sequestration of such real and personal estate to be issued, and may (if it appears to be just) direct payment to be made out of such real and personal estate of such sum or sums of money as, at the hearing

XXXV.
Cause not heard on same day as order made.

XXXVI.
Defendant may appear at hearing.

XXXVII.
If Defendant has appeared, the decree is absolute

XXXVIII.
Court may make special Orders on such decree.